

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF MADELINE FOX BY COUNTY OF RIVERSIDE, GLYNN ALLEN WILBURN

Tentative Ruling:

Moving party: Defendants County of Riverside and Glynn Wilburn

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

The court record indicates a Demurrer to the FAC by the City of Beaumont is set for 8/13/26 and a Demurrer to the FAC by the City of Calamesa is set for **8/19/26**. The court will continue the hearing on today's Demurrer to **8/19/2026** to be heard in conjunction with the Demurrer set on that day. Likewise, the Court will continue the hearing on the Demurrer currently set for 8/13/2026 to **8/19/2026** to be heard in conjunction as well. All three Demurrers will be heard on **8/19/2026** at 8:30 in Department 6.

The Court notes there is a Motion to Stay calendared for 8/14/2026. That hearing will remain on calendar as scheduled.

The Court further notes that there is a Case Management Conference calendared for 8/18/2026. The CMC will be continued to **8/19/2026** and be heard on the same day as the three Demurrers.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602387	HINDERSINN VS FCA US LLC	DEMURRER TO ANSWER ON COMPLAINT FOR PRODUCT LIABILITY (OVER \$35,000) OF MICHELE HINDERSINN AS TO FCA US LLC

Tentative Ruling:

Moving party: Plaintiff, Michelle Hindersinn

Represented by: American Lemon Law Group, LLP

Responding party: Defendant, FCA US LLP

Represented by: RoseWaldorf LLP

Plaintiff has failed to satisfy her obligation to meet and confer and file the appropriate declaration(s) in accordance with CCP § 430.41. Counsel for Plaintiff, Arega Eissagholian, filed a meet and confer declaration that is not in compliance with CCP § 430.41. Specifically, Ms. Eissagholian declares that on 5/27/25, she sent an email to Defendant's counsel detailing the grounds for the demurrer, and requesting defense counsel's availability to meet and confer by phone. (Dec. Eissagholian ¶ 3, Ex. "B".) She declares that as of the date the demurrer was filed, Defendant had failed to respond/meet and confer. (*Id.* ¶ 4.) She concludes that due to lack of cooperation, Plaintiff had no choice but to bring this demurrer. (*Id.* ¶ 5.)

Ms. Eissagholian did not call or otherwise attempt to communicate further with counsel's office. Instead, she sent a single meet and confer *email*, and asked defense counsel to provide availability to meet and confer. She did not follow up thereby placing the burden of initiating meet and confer efforts by phone on defense counsel. Ms. Eissagholian has not sufficiently complied with the statute because she did not speak with defense counsel *in person or by phone* concerning the defects in the Answer nor did she make sufficient efforts to call defense counsel. Therefore, substantive meet and confer efforts as to the Answer have not been engaged in by telephone or in person as required.

Nevertheless, the Court will reach the merits of the Demurrer.

Plaintiff, Michele Hindersinn, alleges she purchased a new 2024 Jeep Wagoneer S, which was accompanied by express and implied warranties from Defendant, FCA US LLP (FCA). She alleges that the vehicle was delivered with serious defects and nonconformities to warranty in the electrical, engine, and axle systems that impair the use, value and/or safety of the vehicle. Plaintiff presented the vehicle to FCA's authorized repair facilities but, they were unable to conform the vehicle to warranties after a reasonable number of repair attempts. Plaintiff filed her Complaint on 4/16/26 alleging three causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2(b).

On 5/22/26, Defendant, FCA, filed its Answer to Plaintiff's Complaint.

Plaintiff, Michele Hindersinn, brings this demurrer to the 3rd through 25th affirmative defenses (AD) in FCA's Answer for failure to state facts sufficient to constitute an affirmative defense (AD) and for uncertainty. (CCP §§ 430.20; 431.30(b).) Plaintiff argues that the doctrine of contributory negligence (4th AD) has been barred since 1975; and, that the 3rd, 5th through 25th Afs are conclusory and fails to state facts.

Defendant, FCA, opposes the motion arguing that the Complaint contains conclusory allegations but, Plaintiff somehow takes issue with FCA's Answer; that the alleged ADs provide sufficient notice to Plaintiff of the issues; and some ADs were alleged to preserve them if needed. Nonetheless, FCA agrees to withdraw its 4th, 9th, 10th, and 12th ADs, which makes the demurrer moot.

The Reply asserts that the Opposition is trying to salvage a series of improperly pled, boilerplate ADs based on meritless arguments; that Plaintiff tried to meet and confer in good faith but, defense counsel failed to respond; and re-asserts prior arguments.

Analysis:

DEMURRER

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672).

CCP §430.20(a), and (b) provide for a demurrer to an answer based on the failure to state sufficient facts to constitute a defense, and uncertainty. CCP §430.50(b) provides that a demurrer to an answer may be taken to the whole answer or to any one or more of the defenses set forth in the answer.

"A statement of any new matter constitutes a defense." (CCP § 431.30(b)(2).) This "new matter" is different than a simple denial of the allegations in the complaint. Rather, it is "some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:430.)

In this case, Plaintiff asserts that certain of Defendant's affirmative defenses fail to allege sufficient facts to constitute a defense and/or are uncertain. As to the subject affirmative defenses, Plaintiff asserts that no supporting facts have been alleged; and that the alleged defenses are invalid in the context of this lawsuit. Defendant disagrees. Notably, Defendant has agreed to withdraw its 4th (contributory negligence), 9th (estoppel) 10th (waiver) and 12th (unclean hands) ADs.

There are two schools of thought with regard to demurrers to answers. The first is that it is technically correct to sustain the demurrer where defendant has not alleged any facts.

The second is to overrule the demurrer because there is no reported case dealing with what facts would be sufficient to plead an affirmative defense. Thus, once the court entertains a demurrer to an answer, it is inviting endless demurrers to the successive amended answers because the amount of facts defendant must plead is unknown.

One case is helpful here: *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367. This case did not deal with a demurrer to an answer, but was an appeal from the granting of summary judgment in favor of plaintiff. *FPI Development* reminds the Court of the purpose, historically, of demurring to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiff made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. The summary judgment statute, however, was amended in 1992, eliminating this requirement. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to defendant's affirmative defenses, a demurrer to an answer no longer accomplishes anything other than to harass the answering party.

Here, Plaintiff asserts that certain of the subject affirmative defenses fail to state sufficient facts, are uncertain, improper or invalid in this SBA action. It is accurate that the subject affirmative defenses themselves are conclusory but, so are the allegations in the Complaint. Plaintiff takes issue with the lack of facts that are alleged but, a demurrer only addresses the face of the pleading. Whether there are alleged facts or not, the merits of the affirmative defenses are not before the court on this motion.

More importantly, a pleading need only give fair notice of the issues involved. (Weil & Brown, *supra.* at § 6:128, citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.) Here, Defendant's Answer gives Plaintiff fair notice of the affirmative defenses asserted. If Plaintiff wants further clarification of the affirmative defenses, she can propound Form Interrogatory No. 15.1, which would require Defendant to state all facts upon which it bases its affirmative defenses. Thus, the challenged affirmative defenses (AD) are sufficiently alleged for purposes of surviving a demurrer.

Overrule the demurrer to the Answer.